

& 32 Vict.

41.

Part 11th and
real

& 32 Vict.

23.

power existing under subsection (4) of section eighty-three of the Local Government Act, 1888, or otherwise.

2.—(1) This Act may be cited as the *Recorders, Stipendiary Magistrates, and Clerks of the Peace Act, 1906*.

(2) The *Recorders, Magistrates, and Clerks of the Peace Act, 1888*, is hereby repealed.

CHAPTER 47.

An Act to provide for the regulation of Trades Unions and Trade Disputes. [21st December 1906]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

violation of

of con-

spiracy in the

case of trade

disputes.

& 35 Vict.

30

1. The following paragraph shall be added as a new paragraph after the first paragraph of section three of the *Conspiracy and Protection of Property Act, 1875*:—

"An act done in pursuance of an agreement or combination by two or more persons shall, if done in contemplation of furtherance of a trade dispute, not be actionable unless the act if done without any such agreement or combination, would be actionable."

peaceful
striking.

2.—(1) It shall be lawful for one or more persons, acting on their own behalf or on behalf of a trade union or of an individual employer or firm in contemplation or furtherance of a trade dispute, to attend at or near a house or place where a person resides or works or carries on business or happens to be, if they so attend merely for the purpose of peacefully obtaining or communicating information, or of peacefully persuading any person to work or abstain from working.

(2) Section seven of the *Conspiracy and Protection of Property Act, 1875*, is hereby repealed from "attending at or near" to the end of the section.

removal of
ability for
striking
in another
person a busi-
ness, &c.

3. An act done by a person in contemplation or furtherance of a trade dispute shall not be actionable on the ground only that it induces some other person to break a contract of employment or that it is an interference with the trade, business, or employment of some other person, or with the right of some other person to dispose of his capital or his labour as he wills.

prohibition of
striking
trade

4.—(1) An action against a trade union, whether of workmen or masters, or against any members or officials thereof on behalf of themselves and all other members of the trade union, if

respect of any tortious act alleged to have been committed by or on behalf of the trade union, shall not be entertained by any court.

(2) Nothing in this section shall affect the liability of the trustees of a trade union to be sued in the events provided for by the Trades Union Act, 1871, section nine, except in respect of any tortious act committed by or on behalf of the union in contemplation or in furtherance of a trade dispute.

5.—(1) This Act may be cited as the Trade Disputes Act, 1906, and the Trade Union Acts, 1871 and 1876, and this Act may be cited together as the Trade Union Acts, 1871 to 1906.

(2) In this Act the expression "trade union" has the same meaning as in the Trade Union Acts, 1871 and 1876, and shall include any combination as therein defined, notwithstanding that such combination may be the branch of a trade union.

(3) In this Act and in the Conspiracy and Protection of Property Act, 1875, the expression "trade dispute" means any dispute between employers and workmen, or between workmen and workmen, which is connected with the employment or non-employment, or the terms of the employment, or with the conditions of labour, of any person, and the expression "workmen" means all persons employed in trade or industry, whether or not in the employment of the employer with whom a trade dispute arises; and, in section three of the last-mentioned Act, the words "between employers and workmen" shall be repealed.

CHAPTER 48.

An Act to amend the Merchant Shipping Acts, 1894 to 1900. [21st December 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

PART I.

SAFETY.

1. Sections four hundred and thirty-seven to four hundred and forty-three of the principal Act (which relate to load-line) except subsections (3) and (4) of section four hundred and forty, shall, after the appointed day, apply to all foreign ships while they are within any port in the United Kingdom, as they apply to British ships, without prejudice—

(a) to the power of His Majesty previously to apply those provisions to the ships of any foreign country, if the Government of that country so desire, under section seven hundred and thirty-four of the principal Act;

Application of
British load-
line provisions
to foreign
ships.